

CORRESPONDENCE WITH PLEADED GROUNDS OF JUDICIAL REVIEW

AC-2025-LON-004293 — *Zahmoul v Secretary of State for Justice & HMCTS*

This document sets out the structure of a serialised public record of seven daily statements placed on the public archive of a live judicial review (AC-2025-LON-004293).

The claim is brought by a disabled litigant in person against the Secretary of State for Justice and HMCTS. It pleads five grounds concerning the administrative handling of court-ordered protective measures, the absence of administrative reasons, the treatment of material relating to sworn financial disclosure (Oxus) and digital evidence in court custody (Imerman), and cumulative institutional impact.

The judicial review is at the permission stage. No judicial determination has been identified addressing those grounds. Applications filed in January and March 2026 remain undetermined as at the date of this document.

The seven public-record statements, distributed and archived during this period, form the documentary record of those undetermined matters. Each statement corresponds to one or more of the pleaded grounds.

This document shows where each statement sits within the structure of the claim. The grounds are reproduced verbatim below.

Day	Date	Public-Record Statement	Pleaded Ground (verbatim from Amended Grounds of Claim, 2 January 2026)
Day 1	20 April 2026	Autism safeguards revoked, police referral, financial discrepancy	Overview — engages all five grounds. The opening statement of the serialised public record.
Day 2	1 May 2026	The Suppressed Clinical Evidence	Ground 1 (Administrative Revocation and Non-Operation of Court-Ordered Protective Measures — Disability Participation) and Ground 2 (Absence of Reasons and Administrative Audit Trail)
Day 3	5 May 2026	Orders Made Without Participation of a Disabled Litigant	Ground 1 (Administrative Revocation and Non-Operation of Court-Ordered Protective Measures — Disability Participation & Maintenance Pending Suit) and Ground 2 (Absence of Reasons and Administrative Audit Trail)
Day 4	(to follow)	Oxus — administrative non-handling of serious material	Ground 3 — Administrative Non-Handling of Serious Material (Oxus)
Day 5	(to follow)	Imerman — administrative handling of digital devices in court custody	Ground 4 — Administrative Handling of Imerman Devices

Day 6	(to follow)	Cumulative impact — administrative omissions on participation and access to recourse	Ground 5 — Failure to Consider Cumulative Impact
Day 7	(to follow)	[Final — closing of the serialised public record]	Closing — the cumulative documentary record across all five grounds

THE FIVE PLEADED GROUNDS — VERBATIM FROM THE AMENDED GROUNDS OF CLAIM (2 JANUARY 2026)

Ground 1 — Administrative Revocation and Non-Operation of Court-Ordered Protective Measures (Disability Participation & Maintenance Pending Suit)

The Claimant is a disabled court user. Participation measures were identified and implemented during proceedings pursuant to Part 3A. Those participation measures were subsequently treated by court administration as having ceased without any judicial determination, order, or recorded reasons. The withdrawal occurred immediately following the trial, without notice, without a hearing, and without affording the Claimant an opportunity to be heard. A parallel administrative failure arose in relation to Maintenance Pending Suit. The challenge is to the administrative handling of both participation measures and MPS, including the non-operation or revocation of court-ordered protective measures without lawful authority; the absence of any lawful administrative process for variation, cessation, or enforcement during the relevant period; and the absence of any contemporaneous audit trail, reasons, or recorded administrative decision.

Ground 2 — Absence of Reasons and Administrative Audit Trail

In respect of multiple matters raised by the Claimant, there is no identifiable administrative decision, reasoning, or audit trail. The absence of reasons and traceable administrative handling frustrates accountability and effective recourse and constitutes an arguable public law error.

Ground 3 — Administrative Non-Handling of Serious Material (Oxus)

The Claimant does not invite the Court to determine the truth of allegations concerning Oxus or to make findings of criminal liability. The challenge is confined to the administrative and procedural handling of serious material placed before the court, including documentary material, sworn statements, contemporaneous correspondence, and a formal contempt application. Despite the seriousness of the material, there is no identifiable administrative action, recorded decision, referral, audit trail, or reasoned response. The absence of any discernible administrative handling constitutes an arguable failure to operate a lawful and accountable process when faced with material affecting the integrity of proceedings.

Ground 4 — Administrative Handling of Imerman Devices

The Claimant challenges the administrative handling of the Imerman process, including prolonged inaction, lack of escalation, and absence of any recorded administrative decision explaining inaction. The failure to operate an established administrative process in respect of the Imerman devices constitutes an arguable public law error.

Ground 5 — Failure to Consider Cumulative Impact

The Defendant public authorities failed to consider the cumulative impact of repeated administrative omissions and inaction on the Claimant's participation and access to recourse.

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Public archive: <https://github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive>

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